

ORDER SHEET

Case No: W.P.No.70991/2022

Federation of Pakistan etc.

21.11.2022 Mr. M. Asad Manzoor Butt, ASC for the
Petitioner alongwith Mr. Afzaal Hussain
Hashmi, Advocate.
Mirza Nasar Ahmad, Additional Attorney
General for Respondent No.1 alongwith Malik
Javaid Akhtar, Additional Attorney General-I,
Mr. Nasir Javaid Ghumman, Deputy Attorney
General and Mazhar Yasin Khan Wattoo, Joint
Secretary, Federal Ministry of Interior.
Miss Maria Farooq, AAG alongwith Rai
Shahid Saleem Khan, AAG.

2. This writ petition has been filed by the Petitioner under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “Constitution”) with two-fold prayer. One is to direct the Respondents to stop the protests,

including the Long March, or make arrangements for the protection of life and liberty of business community as well as the public at large and his second prayer is to direct the Respondents to take appropriate steps for the betterment of law & order situation in the country by arranging an alternate open place outside the cities for lawful demonstration, protests or processions by the political parties.

3. On the previous date of hearing, i.e. 14.11.2022, this Court observed that the Long March is based on the fundamental right of democracy in terms of Article 16 of the Constitution, scope of which has already been expanded in the judgment reported as Mian Ali Asghar versus Government of the Punjab and others (2020 CLC 157), by holding (in paragraph-9) that “*right to peaceful protest and procession is a fundamental right of all the citizens in a democratic country like ours.*” The provisions of Article 16 of the Constitution are to be read with the preamble of the Constitution, which clearly narrates that the State shall exercise its powers and authority through the chosen representatives of the people and by doing so, the principles of democracy, freedom, equality, tolerance and social justice, as enunciated by the Islam, shall be fully observed. The core contention raised by learned counsel, Mr. M. Asad Manzoor Butt, ASC, is that as the Petitioner is a businessman, therefore, due to the Long March being conducted by a political party known as “Pakistan Tehreek-e-Insaaf” (the

“PTI”), not only his but also fundamental rights of other business community, as guaranteed under Article 18 of the Constitution, are being infringed.

4. Suffice to mention here that in **Mian Ali Asghar Case** (*supra*), this Court besides giving observations regarding the peaceful protest and procession being a fundamental right of all the citizens in a democratic country, has also held that “**protesters who claim to espouse their cause often forget that their right to protest ends when other person’s right to free movement and right of trade/business starts.**” In the said judgment, reference has also been made to the judgment of **Kerala High Court** in **Jacob’s case** (AIR 1993 Kerala 1), relevant portion [from paragraph-9] of which is given as under for ease of the matter:-

“19. Professions of rights, distanced from realities of life, would make liberties unreal. The liberties of some, could prove to be the end of the liberties of others. The loquacious may silence the meek. The State must protect the mute, the unorganized and inarticulate, against onslaught of enthusiasm of the vocal or the vociferous. It is no use saying hosannas to freedom, unless such freedom is real. Real they will be, only if there is an ordered society. Order to liberty, is what oxygen to life is. There is no basis to think that freedom and order are not compatible. They are complementary. Liberty will be lost in excess of anarchy, if there is no order. Regulation and suppression are not the same in purpose or result. Time it is to think, whether un-disguised assertions of rights by some, have not imperiled rights of others. If one were to recognize right to protest by blocking roads and railways, it is recognition of a right, to deny rights of

the peaceful citizens. Acorns of today, will grow into oaks of tomorrow.”

Moreover, the right to democracy and the right to peaceful protest or procession have been further developed by this Court in the case of a protest on Mall Road [from Mian Mir Bridge to Post Master General, Office, Mall Road], reported as Mian Ali Asghar versus Government of the Punjab and others (2021 MLD 370) in which this Court, by relying on the principles settled in the earlier judgment reported as 2020 CLC 157 (*supra*), issued certain directions in respect of declaring the aforesaid area as “Red Zone”, in result thereof, a Committee was formed by concerned hierarchy of the Provincial Government to make proper legislation and ultimately, a draft of “the Punjab Red Zone (Establishment and Security) Act, 2020” (the “Draft Act”) was prepared but pursuant to subsequent meetings of (aforesaid) Committee, certain amendments were made in the Draft Act and then, final Draft was prepared and submitted to this Court known as “the Punjab High Security Zones (Establishment) Act, 2020” (the “Final Draft Act 2020”), on the basis of which, the said case was disposed of with certain substantial directions to the relevant Government Departments. The right of democracy has also been expanded by this Court in another issue of holding of “Jalsa” by a political party known as “Pakistan Muslim League” (the “PML”) in the case of Haris Bin Hassan Jang versus Federation of Pakistan and others (2021 CLC 413) in which it has been held “Article 16 of the Constitution

clearly depicts that every citizen shall have the right to assemble peacefully and without arms, subject to any reasonable restrictions imposed by law in the interest of public order.”

5. Another important aspect of the matter is that due to the Long March, the main roads, including the GT Road and Motorways, on north Pakistan are blocked, thus, violating fundamental right of business & trade (Article 18) as well as the right to freely move (Article 15) and in the judgment reported as Muhammad Tahir Jamal versus Government of Pakistan, etc. (PLD 2020 Lahore 407), this Court has already strengthened the scope of Article 15 of the Constitution by observing (in paragraph-16) as under:-

“16. Article 15 of the Constitution provides that every citizen has a fundamental right to freedom of movement throughout Pakistan subject to restrictions imposed by the law. Providing an appropriate safe passage to travel throughout the country is a responsibility shouldered upon the state and the NHA created under the National Highway Authority Act, 1991 which was established for the very purpose of planning, development, operation and maintenance of the National Highways and strategic roads to provide safe, time efficient and better road facilities of international standards to travelers/commuters /passengers so that they can exercise their right of movement in a more better way. Different phases of Motorways are also constructed by the NHA to undertake this very purpose at the level of utmost excellence because the NHA is custodian of the Highway assets of Pakistan’s road network and committed to provide a safe, modern and efficient transportation system.”

Right to free movement has also been discussed by this Court in the recent judgment reported as Muhammad Umais versus Cantonment Board Rawalpindi and others (PLD 2022 Lahore 148), relevant paragraph 42 of which is reproduced hereunder:-

*“Article 26 of the Constitution commands that there must not be any discrimination to access the places of public entertainment or resort. **However, the manner to access such places can be regulated for the purposes of managing the flow of traffic, which ultimately is a thing directly related to the interest and convenience of the public as required by Article 15 of the Constitution** and laid down under Section 175 sub-section (K) of the Cantonment Act. **It goes without saying that for the purpose of regulating traffic flow and to avoid traffic jams and gridlock situations, entry of vehicular access on a particular road can be controlled and regulated for the very purpose.**”*

It is also significant to mention here that the Long March is affecting the supply of goods to the north side of GT Road and other connected areas/cities, as pointed out by learned counsel for the Petitioner, and this Court has already protected the right of business by highlighting the scope of Article 18 of the Constitution in the case of M.C.R. (Pvt) Ltd, franchisee of Pizza Hut versus Multan Development Authority and others (2021 CLD 639) by discussing in detail the issue of foreign investment and the role of foreign investors in Pakistan. Relevant Paragraph-29 of the said judgment is reproduced hereunder for ease of the matter:-

*“29. Since the Pizza Hut is an international chain and entered into lease agreement with WASA, **it is the duty of the Courts in Pakistan to see the rights of the parties and to protect their interest in order to build confidence of investors in Pakistan but at the same time the interest of government functionaries has also to be examined regarding financial interest of the Government.**”*

6. Be that as it may, on 14.11.2022 this Court has already directed the Petitioner to move an application before Respondent No.4/Inspector General of Police Punjab and if he files such application, the same will, of course, be dealt with by Respondent No.4 in accordance with relevant provisions of the Police Order, 2002 (the “Order”), preamble of which clearly states that the police has an obligation and duty to function according to mandate of the Constitution, law, and **democratic aspirations of the people** while Article 4 of the Order deals with the duties of police, including (i) protection of life, property and liberty of citizens [Article 4(1)(a)]; (ii) keep order and prevent obstruction on public roads and in public streets and thoroughfares at fairs and all other places of public resort and in the neighbourhood of and at the places of public worship [Article 4(1)(f)]; regulate and control traffic on public roads and streets [Article 4(1)(g)]; and prevent harassment of women and children in public places [Article 4(1)(r)] and moreover, administrative power of police is given in Article 10 of the Order read with the Police Act, 1861 (the “Act”) and the Police Rules, 1934

(the “Rules”). All the aforesaid aspects and the principles settled by this Court in the judgments cited above alongwith the verdict of the Hon’ble Supreme Court of Pakistan given in **Kamran Murtaza Case** (*supra*) will also be taken into consideration by Respondent No.4 while dealing with the Petitioner’s application, which will be decided within one week of its filing.

Disposed of.

(JAWAD HASSAN)
JUDGE

*Mājid